

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2025CUPP038111: DIORA GHODSIAN, et al. vs LOS ROBLES REGIONAL MEDICAL
CENTER DBA LOS ROBLES HOSPITAL AND MEDICAL CENTER, et al.**

08/03/2026 in Department 43

Motion for Leave to File a Cross-Complaint by Los Robles Regional Medical Center

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Los Robles Motion for Leave to File a Cross-Complaint

Tentative Ruling: Los Robles Regional Medical Center's (Los Robles) motion for leave to file cross-complaint as to Dr. Shahriar Ghodsian (Code Civ. Proc., §426.50) and Pax Recovery Suites (Code Civ. Proc., §426.30) is GRANTED.

Plaintiff Dr. Ghodsian's special interrogatory responses broadly disclosed his treatment of his father and his father's care at Pax Recovery Suites over the course of seven years. (Opposition Ex 2; Special Interrogatory 1 & 2). Los Robles argues persuasively that prior to Dr. Ghodsian's deposition in January 2026, they were not aware that Dr. Ghodsian treated his father at the Pax Recovery Suites during 2022 through 2024 (the time period alleged in the complaint at ¶13.) The court does not find Plaintiff's argument that the proposed cross-complaint is inequitable, to be persuasive, including that the "special relationship" at issue in *Jaffe v. Huxley Architecture* (1988) 200 Cal.App.3d 1188 is not apparent on the allegations of this case.

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Los Robles is granted leave to file the proposed cross-complaint on or before August 14, 2026.

Moving party is ordered to serve notice of the Court's ruling.